

to a person or body of persons taking the *fee-simple or fee-tail in presenti free from executory limitations over*, and not devises of the fee-simple to several persons in succession for particular estates.

True principle.—The true principle which, independently of the Act referred to, ought to govern these cases would appear to be, that where a testator devises the estate to trustees, or to a beneficiary, and charges his debts, there the trustees or the beneficiary should have a power of sale and signing receipts, but that where a testator charges his debts, and does not devise the estate, or devises it in such a manner that there is no one who can execute the trust, there the executors should have an equitable power of sale and signing receipts, and that the depositaries of the legal estate should be trustees for them, and bound to convey as they direct; but that where the testator has devised the estate, and therefore provided a hand to execute the trust, but the trustee or devisee dies in the testator's lifetime, there, as the hand to execute the trust has only failed by the act of God, no person has a power of sale or signing receipts, but the trust can only be executed by the Court.

[*470] *16. **Storry v. Walsh.**—It remains to notice in connection with this subject the case of *Storry v. Walsh* (a), in which Sir J. Romilly, M. R. held in substance that a devisee, subject to a charge of debts and legacies, may, with the concurrence of the *executors* declaring that all debts and legacies have been paid, *sell for his own private purposes*, and give a good title to a purchaser. This case resembles that of an executor, who is also specific or residuary legatee, selling a chattel interest for his own private debt (b).

[17. **Effect of Settled Land Act.**—Before quitting this subject, however, it will be proper to advert to the question whether the power of selling or mortgaging the property which arises under a charge of debts is affected by s. 56 of the Settled Land Act, 1882. That Act after giving large powers to the tenant for life, including a general power of sale, and a power of mortgaging for specific purposes, which

(a) 18 Beav. 550; and see *Howard v. Chaffers*, 2 Dr. & Sm. 236.

(b) See *infra*, as to receipts of executors, p. 479.